

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
JUDGE DANIEL D. DOMENICO**

Civil Action No.: 18-cv-02076-DDD-SKC
Courtroom Deputy: Robert R. Keech

Date: October 3, 2022
Court Reporter: *

Parties:

HOLLIS ANN WHITSON, as guardian ad litem
for Peatinna Biggs,

Plaintiff,

v.

THOMAS HANNA, Former Sheriff, in his
official and individual capacities,

Defendant.

Counsel:

Jane Holse Fisher-Byrialsen
David N. Fisher

Matthew W. Buck

COURTROOM MINUTES

JURY TRIAL (DAY 1)

8:55 a.m. **Court in session.** Jury not present.

APPEARANCES OF COUNSEL.

Opening remarks by the Court.

Court makes inquiries of Ms. Whitson.

ORDERED: [129] Defendant's Motion in Limine as Contained in Joint Status Report is
GRANTED.

Court makes inquiries of Ms. Whitson.

8:59 a.m. Discussion regarding Ms. Biggs testimony, updated exhibit lists and
witness list, and Mr. Buck calling Mr. Hannah in his case-in-chief.

9:02 a.m. Discussion regarding issues related to Ms. Biggs charges and the criminal
case against Mr. Hannah.

9:15 a.m. Court in recess.

9:32 a.m. Court in session. Jury present.
Court's opening remarks to prospective jurors.

9:40 a.m. Voir dire oath given.

9:41 a.m. Voir dire by Court commences.

10:07 a.m. Bench conference regarding voir dire of juror 100466599

10:10 a.m. Voir dire by Court continues.

10:12 a.m. Bench conference regarding voir dire of juror 100466599.

10:18 a.m. Voir dire by Court continues.

10:20 a.m. Bench conference regarding voir dire of juror 100441395.

10:22 a.m. Voir dire by Court continues.

10:23 a.m. Bench conference regarding voir dire of juror 100446849.

10:25 a.m. Voir dire by Court continues.

10:36 a.m. Bench conference regarding voir dire of juror 100451781.

10:39 a.m. Voir dire by Court continues.

10:39 a.m. Bench conference regarding voir dire of juror 100438824.

10:42 a.m. Voir dire by Court continues.

10:47 a.m. Bench conference regarding voir dire of juror 100459816.

10:51 a.m. Voir dire by Court continues.

10:55 a.m. Bench conference regarding challenges for cause and there are no challenges for cause.

10:57 a.m. Court in recess.

11:10 a.m. Court in session. Jury present.

11:11 a.m. Voir dire by Plaintiff by Mr. Fisher.

11:35 a.m. Voir dire by Defendant by Mr. Buck.

11:43 a.m. Bench conference regarding challenges for cause and there are none.

Challenges for Cause:

- 1) 100441634
- 2) 100447266
- 3) 100466599
- 4) 100451781
- 5) 100438824

Peremptory challenges by Plaintiff:

- 1) 100458896
- 2) 100439183
- 3) 100427699

Peremptory challenges by Defendant:

- 1) 100438809
- 2) 100446849
- 3) 100451901

11:52 a.m. Jury sworn to try the case:

- | | | | |
|----|-----------|----|-----------|
| 1) | 100428300 | 2) | 100459223 |
| 3) | 100464516 | 4) | 100441395 |
| 5) | 100459816 | 6) | 100426054 |
| 7) | 100467518 | | |

11:53 a.m. Court in recess.

1:28 p.m. Court in session. Jury not present.

Discussion regarding preliminary jury instructions and issue related to the acquittal of Mr. Hanna not being admissible.

1:31 p.m. Jury enters.

1:32 p.m. Court reads preliminary jury instructions.

1:51 p.m. Opening statement by Plaintiff by Mr. Fisher.

2:10 p.m. Opening statement by Defendant by Mr. Buck.

2:16 p.m. Jury excused.

Discussion regarding schedule for this afternoon.

2:18 p.m. Court in recess.

2:31 p.m. Court in session. Jury not present.

Discussion regarding stipulated exhibits and Defendant's objection to Plaintiff's exhibit 1.

2:46 p.m. Jury enters.

2:47 p.m. Plaintiff's witness **Thomas James Hanna** sworn.

Direct examination by Plaintiff by Mr. Fisher.

Exhibit(s) identified: 2

Exhibit(s) 2 RECEIVED.

3:10 p.m. Bench conference regarding exhibit 2.

3:12 p.m. Direct examination continues by Plaintiff by Mr. Fisher.

Exhibit(s) identified: 2

3:36 p.m. Court in recess.

3:45 p.m. Court in session.

3:47 p.m. Plaintiff's witness **Thomas James Hanna** resumes.

Direct examination continues by Plaintiff by Mr. Fisher.

4:05 p.m. Bench conference regarding schedule for this afternoon.

4:06 p.m. Jury excused.

Court makes inquiries of Ms. Biggs and she responds to inquiries by the Court.

4:09 p.m. Jury enters

4:10 p.m. Plaintiff's witness **Peatinna Biggs** sworn.

Direct examination by Plaintiff by Ms. Fisher-Byrialsen.

4:25 p.m. Witness excused.

4:28 p.m. Jury excused for the day and shall report back on Tuesday, October 4, 2022, at 9:00 a.m.

Discussion regarding schedule for tomorrow.

4:29 p.m. Court in Recess. TRIAL CONTINUED. TOTAL TIME: 5:07